Brazoria County District Court

Cause No. 2024-CV-0048

Nathaniel Fleming, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Nathaniel Fleming

Date:	August 8, 2024
Location:	Offices of Cooper & Quinn LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Matthew Day, Cooper & Quinn LLP

Q: Please state your full name for the record.

A: I'd rather not put my full name in a transcript. You can call me the plaintiff.

Q: Understood. Let's proceed. Where were you on the day of the collision?

A: I was driving through an intersection in Pasadena, Texas, heading east on a main road with a green light.

Q: Describe what happened as you entered the intersection.

A: A vehicle coming from the north ran the red light and struck the driver's side of my car. The impact came from the left, right behind my door. My car spun a little and the airbags deployed.

Q: Did you see the other vehicle before the impact?

A: Only a split second before. I saw headlights come into the corner of my view and I tried to brake, but there wasn't time.

Q: Did you feel any symptoms immediately afterward?

A: My neck snapped sideways and my head hit the window frame. I felt a sharp pain at the base of my skull and stiffness across my shoulders within a few minutes.

Q: Did you seek medical care that day?

A: Yes. Paramedics checked me at the scene, and I went to the emergency department later that evening because the pain was getting worse.

Q: What treatment have you received since then?

A: I've been seeing a primary care doctor and a physical therapist. I do exercises at home, I use a heating pad, and I was prescribed muscle relaxers for a few weeks. My physical therapy sessions have been about twice a week.

Q: How has the pain affected your daily routine?

A: Driving is harder, especially turning my head to check blind spots. I used to coach my kid's soccer team on weekends and I've had to hand that off to my spouse. Sleeping is difficult because I wake up when I roll onto my left side. Lifting groceries or anything heavy causes flare-ups.

Q: Have you missed any work because of the injury?

A: I missed about a week right after the accident and then went back on a modified schedule. My job involves a lot of sitting at a desk, and sitting for long periods makes my neck stiffen up.

Q: Before this collision, had you ever experienced neck problems?

A: No, not that I can recall. I'd never had treatment for my neck before.

Q: Thank you. Is there anything you'd like to add to your answers today?

A: Only that the pain is real and it changes from day to day. Some mornings are fine and others I can barely turn my head.